

#	Case Name	
1	Biocorr v VDM 2021-01195606	Motion for Leave to File Amended Cross-Complaint Continued to 08/17/2026
2	Buffalo Park v. Boyd 2025-01532614	Motion to File Cross Complaint The Court grants Defendant Warren Boyd’s Motion to file the proposed Cross-Complaint against Plaintiff Buffalo Park LLC. If the proposed cross-complaint is compulsory, leave <i>must</i> be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50; <i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civ. Proc. before Trial</i> (Rutter 2010) § 6:555.) If defendant's cause of action against plaintiff is related to the subject matter of the complaint, it must be raised by cross-complaint; failure to plead it will bar defendant from asserting it in any later lawsuit. (CCP § 426.30; <i>see AL Holding Co. v. O'Brien & Hicks, Inc.</i> (1999) 75 Cal.App.4th 1310, 1313-1314.) Generally, the court must grant leave to file a compulsory cross-complaint irrespective of whether the failure to timely file the cross-complaint was due to oversight, inadvertence, mistake, neglect, or another cause, so long as the party making the motion has not acted in bad faith or no substantial prejudice to the adverse party is shown. (<i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-100; <i>Foot's Transfer & Storage Co. v. Superior Court</i> (1980) 114 Cal.App.3d 897, 902–903.) In short, courts at best have only a “modicum of discretion” in denying leave to file a compulsory cross-complaint. (<i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, 559; <i>Sidney v. Superior Court</i> (1988) 198 Cal.App.3d 710, 718; <i>but compare Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98 (rejecting view the court may exercise discretion in the denial of a motion to file a compulsory cross-complaint).)